

26STCV02044 26STCV02044

County: los-angeles

Division: Civil Law and Motion

Department: 734

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Case Number: 26STCV02044 Hearing Date: September 24, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:51 PM on September 23, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on September 23, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to smcdept734@lacourt.org, with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiffs

allege that Defendant's structure which is being rebuilt following the Pacific Palisades wildfires will obstruct Plaintiffs' views.

Defendant

Patricia W. Cheng, Trustee of the Cheng Trust, for the benefit of Patricia W. Cheng
demurs to the First Amended Complaint.

TENTATIVE RULING

Defendant Patricia W. Cheng, Trustee of the Cheng
Trust, for the benefit of Patricia W. Cheng's demurrer to the First Amended Complaint
is OVERRULED as second cause of action.

Defendant

is to answer the First Amended Complaint within 10 days.

ANALYSIS

Demurrer

Meet and Confer

The

Declaration of Jonathan J. Boustani reflects that Defendant's counsel satisfied
the meet and confer requirement set forth in Code Civ. Proc. § 430.41.

Discussion

The Court has reviewed the moving, opposing
and reply briefs filed by the parties, but only addresses the points which the Court
deems to be material to the disposition of this motion.

Defendant

Patricia W. Cheng, Trustee of the Cheng Trust, for the benefit of Patricia W. Cheng
demurs to the First Amended Complaint as follows:

1. Second

Cause of Action (Private Nuisance).

Defendant

argues that Plaintiffs' private nuisance claim fails because it is still improperly
based on alleged view obstructions caused by Defendant's rebuilt home, and there

is no nuisance simply because a building or structure obstructs the view from neighboring property.

Plaintiff

argues that the 1AC now identifies the source and nature of the legally protected property interest, the reciprocal servitudes creating that interest, Defendant's actual and constructive notice of those restrictions, and the manner in which Defendant's post-fire reconstruction interferes with those rights.

"[I]t is well settled in this state that an owner of land may not do even nonnegligent acts on his property with impunity where they create a nuisance as to his neighbor." (Citation omitted.) "To prevail on an action for private nuisance, a plaintiff must first prove an interference with the plaintiff's use and enjoyment of his or her property. (Citation omitted.) Second, 'the invasion of the plaintiff's interest in the use and enjoyment of the land [must be] substantial, i.e., that it cause[s] the plaintiff to suffer "substantial actual damage."' (Ibid.) Third, "[t]he interference with the protected interest must not only be substantial, but it must also be unreasonable" [citation], i.e., it must be "of such a nature, duration or amount as to constitute unreasonable interference with the use and enjoyment of the land.'" (Citations omitted.)

(Lynch v. Peter & Associates (2024) 104 Cal.App.5th 1181, 1197.)

" '[A]s a general rule, a landowner has no natural right to air, light or an unobstructed view and the law is reluctant to imply such a right.' " (Citations omitted.) [and] ". . . the courts have held that a building or structure cannot be complained of as a nuisance merely because it obstructs the view from neighboring property" (citation omitted). . . .

(Oliver v. AT&T Wireless Services (1999) 76 Cal. App. 4th 521, 535-36.)

The Court

previously ruled that the CC&Rs would permit the erecting of a single story dwelling that does not "unreasonably obstruct" the view from any other lot. Whether Defendant's structure "unreasonably obstructs" the view from any other lot is a question of fact outside the scope of this demurrer. As such, the first cause of action pleads facts sufficient to state a cause of action.

Plaintiffs have
amended to allege:

55. Plaintiffs do not contend that California common law recognizes an unrestricted right to an unobstructed scenic view. Rather, Defendant's conduct constitutes an unreasonable interference with legally protected property interests arising from the reciprocal equitable servitudes created by the recorded CC&Rs. Those servitudes burden Defendant's property, benefit Plaintiffs' properties, run with the land, and define the permissible use of Defendant's property.

56. Before commencing reconstruction of the residence located at 16787 Charmel Lane, Defendant had actual and constructive notice of the recorded CC&Rs and actual notice that Plaintiffs contended the proposed reconstruction exceeded the historic roofline and would materially interfere with the property rights protected by those servitudes.

57. Despite that notice, Defendant knowingly proceeded with construction that materially increased the height, elevation, massing, and roof configuration of the improvements on Defendant's property in violation of the recorded restrictions benefiting neighboring dominant estates.

58. Defendant's conduct constitutes an unreasonable use of Defendant's property because it knowingly interferes with the reciprocal property rights established by the recorded CC&Rs and substantially interferes with Plaintiffs' use and enjoyment of their respective properties.

59. The interference alleged herein is substantial and continuing. It is not merely aesthetic or limited to the loss of a scenic vista. Defendant's construction materially impairs Plaintiffs' beneficial use and enjoyment of their homes, diminishes the utility and value of their properties, interferes with the intended use of principal living areas and outdoor spaces designed to take advantage of the protected view corridors, and substantially interferes with Plaintiffs' quiet enjoyment of their properties.

60. Defendant's conduct is unreasonable because Defendant elected to construct improvements materially exceeding the historic roof profile despite actual notice of Plaintiffs' objections, despite the existence of recorded reciprocal land-use restrictions, and despite the availability of reasonable alternative designs that would have substantially reduced or eliminated the interference.

(1AC, ¶¶ 55 – 60.)

In

this regard, a violation of CC&Rs may constitute a nuisance if it interferes with the free use and enjoyment of the Plaintiff's property:

It is settled that where conduct which violates a duty owed to another also interferes with that party's free use and enjoyment of his property, nuisance liability arises. (Citations omitted.) Under this definition of nuisance, the Association's violation of its duty to Cutujian under the CC&R's gave rise to liability for the nuisance caused by the slump, which plainly interfered with Cutujian's use of the land. Moreover, the CC&R's governing BHE provide that any violation of a duty created by the CC&R's will give rise to an action for nuisance. It also appears that the nuisance was abatable, inasmuch as Cutujian was able to abate it. Consequently, it can reasonably be deemed a continuing nuisance for which a new cause of action arises each day on which the nuisance continues. (Citations omitted.)

(Cutujian v. Benedict Hills Estates Assn. (1996) 41 Cal. App. 4th 1379, 1384-1390.)

Plaintiffs

have sufficient amended to plead a cause of action for nuisance.

The

demurrer to the second cause of action is OVERRULED.

Defendant

is to answer the First Amended Complaint within 10 days.